

Court No. - 21

Case :- WRIT - C No. - 11303 of 2023

Petitioner :- Shiv Narayan

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Pinky Singh, Anil Kumar Gupta

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Heard learned counsel for the petitioner, Sri Jai Krishna Upadhyay, learned counsel for respondent no.2 and learned Standing Counsel for the State-respondents.

The petitioner has challenged the recovery citation dated 16.01.2023 issued by respondent no.4 against the petitioner for recovery of electricity dues in a case of theft of electricity.

Learned counsel for the respondent-Electricity Department states that the impugned recovery has been withdrawn and the petitioner has been granted opportunity to file objections and that fresh order will be passed after considering the same.

Accordingly, the instant petition is **disposed of** with liberty to the respondents to proceed strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 6.4.2023

Shivangi